

SENTENCING ORDER

IN THE CIRCUIT COURT OF HEMPSTEAD COUNTY, ARKANSAS, 8N JUDICIAL DISTRICT 2nd DIVISION
On 4/8/2013 the Defendant appeared before the Court, was advised of the nature of the charges, of
Constitutional and legal rights, of the effect of a guilty plea upon those rights, and of the right to make a statement before sentencing.

Court Info	Judge Duncan Culpepper	File Stamp 2013 MAY -9 P 2:19 R. WOLFENBARGER COURT CLERK 1001 10th St. N. Grand Rapids, MI 49503
	Prosecuting Attorney/Deputy Christi McQueen, Prosecuting Attorney	
	Defendant's Attorney John Pickett ☒ Private ☐ Public Defender ☐ Appointed ☐ Pro Se	
	Change of Venue ☐ Yes ☒ No If yes, from:	

Legal Statements	☐ Pursuant to A.C.A. ☐ §§16-93-301 et seq., ☐ §§5-64-413 et seq., or ☐ _____ this Court, without making a finding of guilt or entering a judgment of guilt and with the consent of the Defendant defers further proceedings and places the Defendant on probation.
	There being no legal cause shown by the Defendant, as requested, why judgment should not be pronounced, a judgment: is hereby entered against the Defendant on each charge enumerated, fines levied, and court costs assessed. Defendant was advised of the conditions of the sentence and/or placement on probation and understands the consequences of violating those conditions. The Court retains jurisdiction during the period of probation/suspension and may change or set aside the conditions of probation/suspension for violations or failure to satisfy Department of Community Correction (D.C.C) rules and regulations. ☒
	☐ of conviction is hereby entered against the Defendant on each charge enumerated, fines levied, and court costs assessed. The Defendant is sentenced to the Arkansas Department of Correction (A.D.C.) for the term specified on each offense shown below.
	Defendant made a voluntary, knowing, and intelligent waiver of the right to counsel. ☐ Yes ☒ No

Offender	Defendant [Last, First, MI] Teel, Monica		DOB 8/21/1984	Sex ☐ Male ☒ Female	Total Number of Counts 1
	SID #		Race & Ethnicity ☒ White ☐ Black ☐ Asian ☐ Native American ☐ Pacific Islander ☐ Unknown ☐ Other ☐ Hispanic		
	Supervision Status at Time of Offense				

Offense # 1: Most Serious Offense

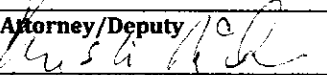
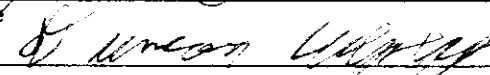
A.C.A. # of Offense/ Name of Offense 5-14-124(a)(3) / Sexual Assault in the First Degree				Case # CR-2012-74	
A.C.A. # of Original Charged Offense 5-14-124(a)(3)		ATN H E M 0 0 5 8 0 8 7 0 2		Offense was ☐ Nolle Prossed ☐ Dismissed ☐ Acquitted	
Offense Date 12/10/2011		Appeal from District Court ☐ Yes ☒ No		Probation/SIS Revocation ☐ Yes ☒ No	
Criminal History Score 0	Seriousness Level 7	Offense is ☒ Felony ☐ Misd.		Offense Classification ☐ Y ☒ A ☐ B ☐ C ☐ D ☐ U	
Presumptive Sentence ☒ Prison Sentence of 42 months ☒ Community Corrections Center ☒ Alternative Sanction					
Number of Counts 1		Defendant ☐ Attempted ☐ Solicited ☐ Conspired to commit the offense			
Defendant Sentence* (See page 2) Imposed ☐ ADC ☐ Jud. Tran. ☐ County Jail _____ months Probation 120 months SIS _____ months Other ☐ Life ☐ LWOP ☐ Death		If probation accompanied by period of confinement, state time: _____ days or _____ months. Sentence was enhanced _____ months, pursuant to A.C.A. § _____ Enhancement is to run: ☐ Concurrent ☐ Consecutive. Defendant was sentenced as a habitual offender, pursuant to A.C.A. §5-4-501, subsection ☐ (a) ☐ (b) ☐ (c) ☐ (d)			
Victim Info# (See page 2) ☐ N/A [Multiple Victims ☐ Yes ☒ No]		Age 17	Sex ☒ Male ☐ Female	Race & Ethnicity ☒ White ☐ Black ☐ Asian ☐ Native American ☐ Pacific Islander ☐ Other ☐ Unknown ☐ Hispanic	
Defendant voluntarily, intelligently, and knowingly entered a ☒ negotiated plea of ☐ guilty or ☒ nolo contendere. ☐ plea directly to the court of ☐ guilty or ☐ nolo contendere.			Defendant: ☐ was sentenced pursuant to ☐ §§16-93-301 et seq., ☐ §§5-64-413 et seq., or ☐ other _____ ☐ entered a plea and was sentenced by a jury. ☒ was found guilty by the court & sentenced by ☒ court ☐ jury. ☐ was found guilty at a jury trial & sentenced by ☐ court ☐ jury. ☐ was found guilty of lesser included offense by ☐ court ☐ jury.		
Sentence is a Departure ☐ Yes ☒ No		Sentence Departure is ☐ Durational or ☐ Dispositional. If durational, state how many months above/below the presumptive sentence:			
Departure Reason (See page 2 for a list of reasons)		Aggravating # _____ or Mitigating # _____. For Agg. #16 or Mit. #10, or if departing from guidelines, please explain:			
Sentence will run: ☐ Consecutive ☐ Concurrent to Offense # _____ or Case # _____					

Defendant's Full Name: Teel, Monica

Special Conditions	Sex Offenses Defendant has been adjudicated guilty of an offense requiring sex offender registration and must complete the Sex Offender Registration Form. ☒ Yes ☐ No Defendant has committed an aggravated sex offense as defined in A.C.A. §12-12-903. ☐ Yes ☒ No Defendant is alleged to be a sexually violent predator and is ordered to undergo an evaluation at a facility designated by A.D.C. pursuant to A.C.A. §12-12-918. ☐ Yes ☒ No Defendant, who has been adjudicated guilty of an offense requiring registration, has been adjudicated guilty of a prior sex offense under a separate case number. ☐ Yes ☒ No If yes, list prior case numbers:	Domestic Violence Offenses Defendant has been adjudicated guilty of a domestic-violence related offense. ☐ Yes ☒ No If no, was defendant originally charged with a domestic-violence related offense? ☐ Yes ☒ No If yes, state the name of the offense: If yes to either question, identify the relationship of the victim to the defendant.
	DNA Sample/Qualifying Offense Defendant has been adjudicated guilty of a qualifying offense or repeat offense (as defined in A.C.A. §12-12-1103). ☒ Yes ☐ No Defendant is ordered to have a DNA sample drawn at ☒ a D.C.C. facility ☐ the A.D.C. or ☐ other _____	Drug Crime Defendant has been convicted of a drug crime, as defined in §12-17-101. ☐ Yes ☒ No

Fines, Fees, Restitution	Court Costs	\$ 150.00	Restitution	\$
	Fines	\$2,500.00	Payable to	[If multiple beneficiaries, give names and payment priority]
	Booking/Admin Fees (\$20)	\$ 20.00	Terms ☐ Due Immediately ☒ Installments of: to be established, monitored & enforced by DCC ☐ Payments must be made within _____ days of release from A.D.C. ☐ Upon release from confinement, Defendant must return to court to establish payment of restitution ☐ Restitution is joint and several with co-defendant(s) who was found guilty - List name(s) and case number(s)	
	Drug Crime Assessment Fee (\$125)	\$		
	DNA Sample Fee (\$250)	\$ 250.00		
	Mandatory Sex Offender Fee (\$250)	\$ 250.00		
	Public Defender User Fee	\$		
	Public Defender Attorney Fee	\$		
Other (explain)	\$			

Sentence Options	Act 531, §§16-93-1201 et seq.: Defendant was convicted of a target offense(s) and is sentenced pursuant to provisions of the Community Punishment Act. ☐ Yes ☒ No The Court hereby orders a judicial transfer to the Department of Community Correction. ☐ Yes ☒ No Pursuant to the Community Punishment Act, the Defendant shall be eligible to have his/her records sealed. ☐ Yes ☒ No			Extended Juvenile Jurisdiction Applied ☐ Yes ☒ No
	JAIL TIME CREDIT In days:	TOTAL TIME TO BE SERVED FOR ALL OFFENSES In months: ☐ Life ☐ LWOP	Death Penalty ☐ Yes ☒ No	If Yes, State Execution Date:
	DEFENDANT IS ASSIGNED TO: ☐ ADC ☐ CCC ☐ COUNTY JAIL ☒ PROBATION ☐ SIS ☐ SPECIAL CONDITIONS			
	Conditions of disposition or probation are attached. ☐ Yes ☒ No			
	A copy of the pre-sentence investigation on sentencing information is attached ☐ Yes ☒ No		☐ Defendant has previously failed a drug court program.	
	A copy of the Prosecutor's Short Report is attached ☐ Yes ☒ No			
	DEFENDANT WAS INFORMED OF APPELLATE RIGHTS ☒ Yes ☐ No		Appeal Bond \$	
	The County Sheriff is hereby ordered to: ☐ transport the defendant to county jail ☐ take custody for referral to CCC ☐ transport to ADC Defendant shall report to DCC probation officer for report date to CCC ☐ Yes ☒ No			

Signature	Prosecuting Attorney/Deputy Signature: 	Date: 4/23/2013 Print Name: Christi McQueen
	Circuit Judge Signature: 	Date: 5-8-13 Print Name: Duncan Culpepper

Additional Info:

As a special condition of her probation, Defendant shall meet with DCC and establish a payment plan for the payment of her court costs, fines & fees in this case. Said payment plan shall be monitored & enforced by DCC.